

Tentative Rulings for May 20, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

25CECG01902 *Lorraine Mae Vander Ark v. The Testate and Intestate Successors of Carrie Ann Vermeer et al. (Dept. 502)*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG04945 *Luis Sanchez v. Maddox Farms, LLC* is continued to Wednesday, July 1, 2026, at 3:30 p.m. in Department 501.

24CECG02869 *Jane Doe No. 1 v. Kerry Hirahara* is continued to Thursday, May 21, 2026, at 3:30 p.m. in Department 502.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 502

Begin at the next page

(03)

Tentative Ruling

Re: **Joy C&C LLC v. Yang**
Case No. 25CECG04045

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Plaintiff/Cross-Defendants' Demurrer to Cross-Complaint and
Motion to Strike Portions of Cross-Complaint

Tentative Ruling:

To sustain the demurrer to the entire cross-complaint for uncertainty and failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subds. (e), (f).) To grant leave to amend as to the first through twelfth causes of action. To deny leave to amend as to the thirteenth and fourteenth causes of action. To deny the motion to strike as moot in light of the ruling on the demurrer.

Cross-complainants shall serve and file their first amended cross-complaint within ten days of the date of service of this order. All new allegations shall be in **boldface**.

Explanation:

Meet and Confer Efforts: Plaintiff's counsel has now filed a declaration regarding meet and confer efforts, in which she explains at length all of her attempts to discuss the issues raised by the demurrer and motion to strike with cross-complainants. Most recently, plaintiff's counsel engaged in an hour-long telephonic meet and confer discussion with John and Austin Yang where they discussed the issues with the cross-complaint. (Cowan decl., ¶ 17.) The parties also exchanged a number of emails discussing the issues with the cross-complaint. However, they were unable to resolve their dispute. (*Id.* at ¶¶ 18-19.) Therefore, plaintiff has complied with the meet and confer requirement, and the court will hear the merits of the demurrer and motion to strike.

Demurrer: First, the entire cross-complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) Defendant/cross-complainants John Tone Yer Jr Yang, Austin Yang, and Layla Yang are trying to assert claims regarding ownership of the subject real property based on breach of contract, breach of implied covenant of good faith and fair dealing, declaratory relief, accounting, unjust enrichment, fraudulent concealment, etc., but only John¹ alleges that he actually has any ownership interest in the subject real property. (Cross-Complaint, ¶ 1.) Austin and Layla are only alleged to be residents on the property. (*Id.* at ¶¶ 2, 3.) It is unclear how Austin or Layla have any ownership rights to the property under the alleged contract, or how they were harmed by the breach of contract, fraudulent concealment, or any of the other alleged wrongful acts of plaintiff/cross-defendants. The cross-complaint is also vague and ambiguous with regard to the contract or contracts that are being alleged, what the terms of the contracts are, who

¹ The court will refer to cross-complainants by their first names for clarity and brevity, as they all share the same last name. No disrespect is intended.

the parties to the contracts are, how the contracts were breached, and who was harmed by the breach. Cross-complainants also vaguely allege their claims against three different cross-defendants without alleging which cross-defendants committed which wrongful acts. Therefore, the entire cross-complaint is vague and uncertain.

First Cause of Action: Next, the first cause of action for quiet title fails to state a valid cause of action. While John seeks to quiet title to the property, he admits that he has only a 20% interest in the property, which is consistent with the allegations of plaintiff's complaint, which alleges that plaintiff has an 80% interest and John has a 20% interest in the property. (Compare Cross-Complaint, ¶¶ 1, 28 and Complaint, ¶ 4.) Thus, the cross-complaint is ambiguous and fails to state any facts showing that John is entitled to quiet title when he admits that he has only a 20% interest in the property and he seems to admit that plaintiff is not seeking to challenge his 20% interest in the property.

John seems to be alleging that he has a 50% interest in the property because the short-form deed of trust/assignment of rents states that there is a "80%/20% joint tenancy", which is inconsistent with Civil Code section 683(a), which requires equal shares for a joint tenancy. Therefore, John alleges that the parties own a tenancy in common and have equal shares of the property. (Cross-complaint, ¶ 13.) However, he also alleges inconsistently that he owns an undivided 20% interest in the real property. (*Id.* at ¶¶ 1, 28.) It is unclear what adverse interest John is alleging that plaintiff has asserted, as they both seem to agree that plaintiff has an 80% interest and John has a 20% interest in the property.

Also, John's apparent allegation that the parties must automatically own equal interests in the property because the title states that there is a joint tenancy is incorrect, as the parties may agree to an unequal division of the property and pay unequal amounts to purchase the property even if the title is held in a "joint tenancy". (*Kershman v. Kershman* (1961) 192 Cal.App.2d 23, 26-27.) Here, John concedes that he owns a 20% interest in the property, and he seems to be alleging that he only paid \$35,000 toward the purchase price for the property (Cross-Complaint, ¶ 9), which is inconsistent with his apparent allegation that he owns a 50% interest in the property. Therefore, the first cause of action is uncertain and fails to state a cause of action for quiet title.

Second Cause of Action: The second cause of action for cancellation of instruments under Civil Code section 3412 also fails to state a claim and is uncertain. Under Civil Code section 33412, "A written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." (Civ. Code, § 3412.)

Here, cross-complainants assert that the short-form deed of trust and assignment of rents and other encumbrances recorded by cross-defendants are void or voidable, as they were allegedly recorded without a legal description and without trustor execution/acknowledgement, and they were recorded during the periods when cross-defendant Joy C&C LLC was suspended as a corporation. (Cross-Complaint, ¶ 32.) They also claim that the ownership recordings and deeds showing an 80% ownership are also void or voidable. (*Ibid.*) They allege that the instruments are causing them serious injury

by clouding title and impairing alienability, and therefore they should be cancelled or expunged. (*Ibid.*)

Again, however, Austin and Layla admit that they have no ownership interest in the property, so they have no standing to seek to cancel or expunge the deed of trust and assignment of rents or other deeds based on any alleged flaws in those instruments. Nor is it clear how John could have been injured by the recording of the instruments, which he admits show that he has a 20% interest in the property. While he claims that the instruments created a cloud on his title, he also alleges that he is the 20% owner of the property based on the same instruments. His allegations of being harmed by the deed and assignment of rents are inconsistent with his own admission that his ownership is based on the same instruments. If he succeeds in voiding the instruments, it would effectively destroy any ownership interest he has in the property, so his allegation that the instruments are harming him makes no sense.

Also, contrary to the allegations of the cross-complaint, the recorded short form deed of trust and assignment of rents includes a legal description and the notarized signatures of John Yang and Cindy Cha, representative of Joy C&C LLC. (Cross-Complainants' Request for Judicial Notice, Exhibit C. The court will take judicial notice of the recorded deed of trust and assignment of rents for the property.) In addition, cross-defendant Joy C&C LLC is not a suspended corporation, and therefore cross-complaint's allegation that the instruments are void because Joy C&C is a suspended corporation is inconsistent with judicially noticeable facts. (Cross-Defendants' Request for Judicial Notice, Exhibit C. The court will take judicial notice of the Secretary of State's certificate of status for Joy C&C.) Therefore, the second cause of action is uncertain and fails to state a claim for cancellation of the instruments.

Third Cause of Action: The third cause of action is also uncertain and fails to state a claim. Cross-complainants allege that they are entitled to declaratory relief with regard to the "REI Contract (no AOR clause)", that Joy LLC lacks contractual standing absent assignments/novation/merger, that John holds at least a 20% legal/equitable interest, that "the recorded AOR/DOT lacks a legal description and trustor execution and is therefore unenforceable and non-notice as to the Property", that acts during the suspension of Joy C&C's suspension are voidable, that the unlawful detainer is non-preclusive as to title ownership, and that "the 10/29/2021 memo reflects 24 months prepaid credit that must be applied/offset." (Cross-Complaint, ¶ 34.) These allegations are vague and confusing, and do not show that cross-complainants are entitled to a declaration regarding their rights under the contracts or other instruments.

As discussed above, there does not appear to be any real dispute between the parties that John owns a 20% interest in the property. The allegation that Joy C&C lacks standing is inconsistent with the contract language. Likewise, the recorded deed of trust and assignment of rents does include a legal description and was executed by the parties, as shown in the recorded deed of trust. In addition, while cross-complainants allege that Joy C&C was suspended and thus the instruments are void or voidable, the judicially noticeable records of the Secretary of State show that Joy C&C LLC is in good standing. Since cross-complainants have not alleged any facts showing the existence of an actual controversy regarding their rights and duties under the agreements, they have not stated a claim for declaratory relief.

Fourth Cause of Action: Next, the fourth cause of action for breach of contract fails to state a valid cause of action and is uncertain. The elements of a cause of action for breach of contract are (1) a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) resulting damages. (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.)

Here, the cross-complaint alleges the existence of an agreement formed on October 29, 2021. However, cross-complainants do not allege the subject matter of the agreement, its terms, or what the duties of the parties were under the agreement. The cross-complaint does refer to the "Residential Lease Agreement", attached as Exhibit B to the compendium of exhibits to the cross-complaint. (Cross-Complaint, ¶ 36, and Exhibit B to Compendium of Exhibits to Cross-Complaint.) Cross-complainants also allege that plaintiff only credited \$30,000 of the \$35,000 they paid under the agreement, and refused to account for payments. (*Ibid.*) Cross-complainants also vaguely allege that plaintiff recorded adverse instruments inconsistent with the agreement, but they do not allege what documents plaintiff recorded or how they were inconsistent with the agreement. (*Ibid.*) They allege they lost equity and incurred title-clearing costs, but it is not clear how much damages they actually suffered. (*Ibid.*) They also allege that plaintiff filed an unlawful detainer action to demand additional sums and thus caused additional damages. (*Id.* at ¶ 37.) Again, however, it is unclear what additional damages they suffered from the filing of the unlawful detainer case.

If parties only entered into a lease agreement, it is unclear how cross-complainants could have lost equity in the property. It appears that cross-complainants may be alleging some type of lease-to-own agreement existed, but they allege no facts showing what the terms of the agreement were, that they performed under the agreement, or how plaintiff breached the agreement and caused them damages. Therefore, the breach of contract claim is uncertain and fails to state facts sufficient to constitute a valid cause of action.

Fifth Cause of Action: The fifth cause of action for breach of the implied covenant of good faith and fair dealing is also uncertain and fails to state a valid cause of action. Cross-complainants allege that plaintiff frustrated the contractual benefits by declining for years to invoice or credit payments, mis-recorded an assignment of rents without contractual foundation, targeted a non-signer in the unlawful detainer action, and attempted to transform non-collection into forfeiture. (*Id.* at ¶ 39.) Plaintiff also allegedly demanded amounts already prepaid, refused to ledger credits, and used the unlawful detainer case to coerce concessions, thus unreasonably interfering with cross-complainants' contractual benefits. (*Id.* at ¶ 40.)

"Implied in every contract is a covenant of good faith and fair dealing. The implied covenant prevents one side from unfairly frustrating the other's right to receive the benefits of the agreement actually made. The covenant does not impose substantive terms beyond those of the contract. A plaintiff claiming breach must allege the defendant's wrongful conduct was contrary to the contract's purpose and the parties' legitimate expectations." (*Cordoba Corp. v. City of Industry* (2023) 87 Cal.App.5th 145, 156, citations omitted.)

Here, since cross-complainants have not alleged facts to support their breach of contract claim, or even clearly alleged what the nature of the contract was and how plaintiff breached it, they also have not stated a valid claim for breach of the implied covenant. Without clear allegations regarding the nature and terms of the underlying contract, there is no way for cross-complainants to state a claim for breach of the implied covenant, as they cannot show that plaintiff frustrated the purpose of the contract and the parties' expectations under the contract if they have not alleged what the contract's purpose was. Therefore, the court intends to sustain the demurrer to the fifth cause of action for uncertainty and failure to state facts sufficient to constitute a cause of action.

Sixth Cause of Action: The sixth cause of action for accounting, constructive trust, and unjust enrichment is also vague and does not state a claim. Cross-complainants vaguely allege that there are complex accounts among the parties (taxes, insurance, mortgage, necessary repairs, improvements, occupancy credits/charges) that require an accounting. (Cross-Complaint, ¶ 42.) "The Property and related proceeds form a res subject to a constructive trust/equitable lien in at least \$35,000 (or, at minimum, \$30,000 credited), plus lawful interest, with set-offs for the '24 months' prepaid term." (*Ibid.*) Cross-complainants request that the court impose a constructive trust/equitable lien to secure credits for the \$35,000 inception payment and require set-offs against any rent/damages claims encompassed by the "24 months" prepaid term. (*Id.* at ¶ 43.)

It is unclear what cross-complainants are attempting to allege here. They appear to be asserting that the plaintiff failed to properly account for a \$35,000 payment made either for rent or to purchase part of the property, but without clearly alleging the terms of the underlying agreement, it is difficult to understand what the nature of the payment was or how it was to be credited. They also seem to allege that they paid money to repair or maintain the property, but again the allegations are so vague and confusing that it is impossible to determine exactly what payments were made or what their purpose was. Also, it is unclear why Austin and Layla would have any right to an accounting or constructive trust, as they admit they are only residents on the property and apparently do not assert any ownership rights. Therefore, the court intends to sustain the demurrer to the sixth cause of action for uncertainty and failure to state facts sufficient to state a cause of action.

Seventh Cause of Action: The seventh cause of action seeks to set aside the judgment in the unlawful detainer case. Cross-complainants allege that the unlawful detainer judgment was obtained through fraud and concealment, including misidentifying the operative agreement, serving three-day notices naming Austin, Layla, and John while suing only Austin, attaching inconsistent lease forms, and concealing capacity defects. (Cross-Complaint, ¶ 45.) Cross-complainants also allege that they possess meritorious defenses, including a "recorded 20%, wrong entity, no AOR clause, non-collection", and that there is no adequate remedy at law because UD does not adjudicate title. (*Ibid.*)

However, cross-complainants have not alleged any facts showing that they are entitled to equitable relief from the judgment in the unlawful detainer case. They allege only vague conclusions of fraud and concealment, without any supporting facts showing that they were actually misled into agreeing to a stipulated judgment in the UD case. Also, the court notes that the UD judgment was entered on April 2, 2024, which is over a

year and a half before cross-complainants filed their cross-complaint in December of 2025. (The court will take judicial notice of the stipulated judgment filed in case no. 24CEL01675 on April 2, 2024.) Therefore, it appears that any action to set aside the judgment may be untimely. In any event, the seventh cause of action is uncertain and fails to state facts sufficient to state a claim, so the court intends to sustain the demurrer as to the cause of action.

Eighth Cause of Action: The eighth cause of action for rescission and restitution is also uncertain and fails to state a claim. The eighth cause of action has been brought by Austin only with regard to the stipulated UD judgment. Austin claims that he is rescinding the settlement “for fraud, concealment, illegality (capacity defects) and failure of consideration, and seeks restitution and related equitable relief.” (Cross-Complaint, ¶ 47.) Again, however, cross-complainants allege no facts showing how the UD judgment and settlement were obtained by fraud, concealment, or illegality. Nor have they alleged any facts showing that there was a failure of consideration. There are also no facts alleged showing why Austin is entitled to any restitution or other relief. Cross-complainants allege only conclusions, not facts, so they have not stated a valid claim for rescission or restitution. Therefore, the court intends to sustain the demurrer to the eighth cause of action.

Ninth Cause of Action: The ninth cause of action for fraudulent concealment is also uncertain and fails to state a cause of action. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.” (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606, citation omitted.)

“Fraud must be pleaded with specificity rather than with ‘‘general and conclusory allegations.’’” The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793, citations omitted.)

Here, the cross-complaint alleges only vague conclusions, not specific facts to support the elements of the fraud claim. Cross-complainants allege “Who: Cha and JOY LLC. What concealed: SOS/FTB suspension; absence of any AOR term in the executed REI Contract; wrong-entity recordings; invalid ‘joint tenancy’ recital; insider title flips; and the source/character of John’s \$35,000. When/Where: negotiations from 2021 onward and during the UD. Duty: arising from partial representations, exclusive knowledge, and statutory capacity rules. Reliance: Austin’s UD settlement and the Yang family’s continued performance. Damages: clouded title, costs, and lost equity growth. Punitive damages are warranted against Cha for malice, oppression, and fraud.” (Cross-Complaint, ¶ 49.)

These vague allegations do not contain any specific facts showing exactly what was concealed, when it was concealed, or how cross-complainants would have acted differently if they had known the truth. Cross-complainants seem to be alleging that plaintiff concealed facts regarding the property or payments to purchase the property, but the allegations are too vague to clarify what facts were concealed or how they affected cross-complainants. They also seem to be alleging concealments regarding the UD proceeding, but again it is not clear what facts plaintiffs concealed or how they damaged cross-complainants. They appear to allege that they relied on the concealed facts by entering into the UD settlement and continuing to perform under the agreement, but it is not clear how they were damaged by any concealment, as they apparently continue to reside in the property. Therefore, the court intends to sustain the demurrer to the ninth cause of action for fraudulent concealment.

Tenth Cause of Action: The court will also sustain the demurrer to the tenth cause of action for abuse of process. “The common law tort of abuse of process arises when one uses the court's process for a purpose other than that for which the process was designed. It has been ‘interpreted broadly to encompass the entire range of “procedures” incident to litigation.’ [¶] ‘[T]he essence of the tort [is] ... misuse of the power of the court; it is an act done in the name of the court and under its authority for the purpose of perpetrating an injustice.’ To succeed in an action for abuse of process, a litigant must establish that the defendant (1) contemplated an ulterior motive in using the process, and (2) committed a willful act in the use of the process not proper in the regular conduct of the proceedings.” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056–1057, citations omitted.)

Here, cross-complainants allege that “Cross-Defendants used unlawful detainer and partition procedures not to fairly resolve possession or partition, but to coerce title concessions, chill testimony, and create reputational harm to family members who are key witnesses. (Exh. F.)” (Cross-Complaint, ¶ 51.) “The institution of successive meritless proceedings against non-signatory family members (Austin and Layla) was an improper and ulterior use of the judicial process intended to intimidate, discredit, and silence witnesses in connection with the disputed ownership and cash consideration.” (*Id.* at ¶ 52.) “As a direct and proximate result, Austin and Layla suffered damages, including emotional distress, reputational harm, attorney's fees and costs to defend meritless actions, and other special damages according to proof. Punitive damages are warranted to deter similar misconduct.” (*Id.* at ¶ 53.) “Cross-Defendants continue to brandish the UD judgment to pressure Cross-Complainants, demand money already prepaid, and discredit Austin and Layla as witnesses, causing ongoing economic and noneconomic damages. (Exh. F.)” (*Id.* at ¶ 54.) “Cross-Defendants' refusal to credit the 24-month prepaid rent while invoking the UD constitutes a double-recovery scheme and a willful misuse of process to obtain collateral objectives unrelated to fair adjudication. (Exhs. F, G-I.)” (*Id.* at ¶ 55.)

However, these vague allegations fail to state any facts showing that plaintiff intentionally abused the court process by using court procedures for an illegal purpose. There are no facts alleged that tend to show that plaintiff had an improper purpose in instituting either the UD or the present partition actions, or that cross-complainants were actually damaged by the institution and prosecution of the actions. Therefore, the court

intends to sustain the demurrer to the tenth cause of action for uncertainty and failure to state facts sufficient to constitute a cause of action.

Eleventh Cause of Action: The court will also sustain the demurrer to the eleventh cause of action for slander of title. "To establish slander of title, a plaintiff must show: '(1) a publication, (2) which is without privilege or justification, (3) which is false, and (4) which causes direct and immediate pecuniary loss.'" (*Klem v. Access Ins. Co.* (2017) 17 Cal.App.5th 595, 612, citation omitted.)

Here, cross-complainants allege that "Cross-Defendants published false statements and recorded instruments asserting ownership or AOR rights without privilege and with malice or reckless disregard, causing special damages including attorney's fees, title-clearing costs, and impaired marketability. (Exhs. C, D.)" (Cross-Complaint, ¶ 57.)

However, cross-complainants allege no facts showing that plaintiff published any documents that were false and unprivileged, and that caused them to suffer any harm. Cross-complainants admit that John has only a 20% interest in the property, which is what the short-form deed of trust and assignment of rents shows. (Exhibit C to Compendium of Exhibits.) Thus, cross-complainants' own exhibits show that the title documents published by plaintiff are true. It is not clear how the publication harmed cross-complainants either, as the documents accurately reflect John's share of the property and the other two cross-complainants admit that they do not own any share in the property. Therefore, the court intends to sustain the demurrer to the eleventh cause of action for uncertainty and failure to state a claim.

Twelfth Cause of Action: Next, the twelfth cause of action attempts to state a claim for injunctive relief. Cross-complainants request that the court restrain further transfers, encumbrances, or changes to possession while the case is pending. However, they allege no facts showing that they will suffer any irreparable harm if injunctive relief is not granted, or that they are likely to prevail on the merits of any of their claims. (*Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183.) Thus, they have not stated a claim for injunctive relief, and the court intends to sustain the demurrer to the twelfth cause of action.

Thirteenth Cause of Action: The thirteenth cause of action simply states that cross-complainants reserve their right to amend the cross-complaint as discovery reveals the true legal status, formation, and ownership of Joy C&C LLC, including substituting true names and capacities and asserting additional claims such as malicious prosecution upon favorable termination of the UD case. (Cross-Complaint, ¶ 60.) However, there is no cause of action for "reservation of the right to amend." If cross-complainants wish to amend their cross-complaint, they will need to follow the statutory procedures for doing so. Therefore, the court intends to sustain the demurrer to the thirteenth cause of action for failure to state a claim, without leave to amend.

Fourteenth Cause of Action: Next, the fourteenth cause of action is for "Evidentiary Foundations; Self-Authentication; and Requests for Judicial Notice." This "cause of action" is nonsensical and fails to state any recognizable claim. To the extent that cross-complainants wish to lodge certified copies of recorded instruments or request judicial notice of documents, they may file separate requests with the court. However, they have

not and cannot state a claim based on such requests. Therefore, the court intends to sustain the demurrer to the fourteenth cause of action for failure to state a claim, without leave to amend.

Leave to Amend: Finally, the court will grant leave to amend as to the first through twelfth causes of action, as it is possible that cross-complainants might be able to allege more facts to state valid claims. However, it intends to deny leave to amend as to the thirteenth and fourteenth causes of action, which are not valid causes of action.

Motion to Strike: The court intends to deny the motion to strike in its entirety, as it is moot in light of the fact that the court intends to sustain the demurrer to the entire cross-complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/18/26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Bedrosian v. Saint Agnes Medical Center***
Superior Court Case No. 24CECG05453

Hearing Date: May 20, 2026 (Dept. 502)

Motion: By Plaintiffs to Compel Production of Documents From
Defendant Saint Agnes Medical Center

Tentative Ruling:

To continue the motion to July 8, 2026, at 3: 30 p.m. in Department 501. SAMC is ordered to complete its document production and serve a privilege log by June 3, 2026. Supplemental opposition and reply papers on the issues addressed below shall be filed per Code (Code Civ. Proc., § 1005, subd. (b)) based on the continued hearing date.

Explanation:

This discovery dispute centers on Request for Production of Documents, Set One, propounded by plaintiffs on Saint Agnes Medical Center ("SAMC") on February 12, 2025. SAMC served its initial written responses on March 18, 2025. Part of the delay in bringing this dispute before the court was the parties' agreements to put discovery proceedings on hold on two occasions, once while a demurrer was pending, and again while they were pursuing mediation.

SAMC's responses included various objections, and SAMC insisted on entry of a protective order before full production of responsive documents. The stipulated protective order was finally entered on December 18, 2025.

SAMC contends that the motion should be denied for failure to comply with Local Rule 2.1.17. The Request for Pretrial Discovery Conference ("Request") was filed on October 2, 2025, and focused on issues relating to the protective order. However, the Request specifically identified the discovery dispute as pertaining to Request for Production of Documents, Set One, and concluded with a request that SAMC be ordered to produce responsive documents immediately and pay sanctions. The Request's summary of the dispute focused on the protective order demanded by SAMC because that was the basis for refusal to produce documents maintained by SAMC at that time. The court finds there was compliance with Local Rule 2.1.17.

SAMC has supplemented its responses to the document demand twice, most recently on January 16, 2026. Plaintiffs' counsel filed the instant motion to compel on January 29, 2026, without further meet and confer on the supplemental responses. SAMC requests that the court deny the motion due to the failure to meet and confer regarding the January 16, 2026 further supplemental responses.

The Civil Discovery Act requires a reasonable good-faith attempt to informally resolve the discovery dispute. (Code Civ. Proc., § 216.040.) Whether the attempt at informal resolution was reasonable and in good faith is measured against the history of

the dispute and complexity of the issues. (See *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431–434.)

In this case the court finds that further meet and confer was not necessary. The parties engaged in extensive meet and confer beginning in March of 2025, and extending beyond the filing of the motion. SAMC's January 16, 2026 supplemental responses did not provide much substantively new content. The "Patient Safety Work Product Privilege" was improperly added to the January 16, 2026 supplemental responses. Failure to object on a ground by the initial response deadline waives the objection. (See Code Civ. Proc., § 2031.300.) Accordingly that objection is waived and should not have been added to supplemental responses. Removal of the phrase "Subject to the limitations in Paragraph 5 of the General Objections" from some responses is not a substantive change. Finally, the response to RFP No. 28 (seeking "All agreements between SAMC and VITUITY for hospitalist services") was revised to state: "Defendant has conducted a diligent search and reasonable inquiry and has identified no responsive and nonprivileged documents in its possession, custody, or control." To date no privilege log has been provided. The court declines to deny the motion for failure to meet and confer on this issue alone. SAMC must provide a privilege log if privilege is the basis for failure to produce responsive documents. (See Code Civ. Proc., § 2031.240, subd. (c)(1).)

The final status of the discovery dispute is unknown to the court as of the filing of the reply papers because SAMC maintains that further production is forthcoming, anticipating that production would be complete by the end of April 2026. The problem is throughout the history of this dispute SAMC has promised numerous times production by specified dates, but again and again failed to provide full production.

The reply seems to take the position that the discovery dispute would be resolved by production of the following eight categories of documents: (1) drafts of the Vituity Agreement (Nos. 1, 3, 6); (2) an unredacted copy of the final Vituity Agreement (RPD No. 1); (3) email communications with Vituity regarding the Agreement, including communications involving SAMC's CEO (Nos. 8, 11–12); (4) internal SAMC communications regarding the proposed Agreement (Nos. 7–10); (5) proposals, presentations, and analyses referenced in documents SAMC already produced (Nos. 3, 6, 23– 25); (6) insurance policies potentially applying to the dispute; (7) documents relating to the prior business between SAMC's CEO, Dr. Kaur, and Vituity, directly relevant given Vituity received the exclusive contract shortly after Dr. Kaur was appointed CEO and Dr. Kaur was previously a Vituity partner (No. 11); and (8) documents proving SAMC's defense that the Agreement was necessitated by regulatory concerns regarding SAMC's hospitalist program (Nos. 15–22, 26–27, 31).

It is unclear if SAMC intends to produce these documents. SAMC objects to the reply declaration as presenting new information and evidence, and to the shifting position in the reply. The objection will not be sustained. This is in large part due to SAMC's apparently never-ending rolling production, creating an ever-shifting target for plaintiffs. SAMC has stated that its production would be complete by the end of April, but it has said that before and has repeatedly missed deadlines to produce documents.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/18/26
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: ***Ozburn v. City of Firebaugh***
Case No. 25CECG04360

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Defendants' Demurrer to First Amended Complaint

Tentative Ruling:

To overrule the defendants' demurrer to the first cause of action. To sustain the demurrer to the second through fourteenth causes of action, for failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) To deny leave to amend as to causes of action two through six and eight through fourteen. To grant leave to amend as to the seventh cause of action.

Plaintiff shall serve and file her second amended complaint within ten days of the date of service of this order. All new allegations shall be in **boldface**.

Explanation:

First, defendants the City of Firebaugh and former Chief of Police Raygoza and former Sergeant Ortiz argue that plaintiff has failed to allege any statutory exception to the general rule of statutory immunity, so all of her claims are barred by sovereign immunity. Under Government Code section 815, "Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815, subd. (a), para. break omitted.)

Thus, "[u]nder the Government Claims Act, all government tort liability must be based on statute. 'Government Code section 815, enacted in 1963, abolished all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the federal or state Constitution. Thus, in the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable. Moreover, under subdivision (b) of section 815, the immunity provisions of the California Tort Claims Act will generally prevail over any liabilities established by statute. In short, sovereign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute.'" (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107–1108, citations omitted.)

"[T]he intent of the [Tort Claims Act] is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances: immunity is waived only if the various requirements of the act are satisfied." (*Williams v. Horvath* (1976) 16 Cal.3d 834, 838; see also *Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.)

"[I]n California all government tort liability is dependent on the existence of an authorizing statute or 'enactment', and to state a cause of action every fact essential to

the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. Duty cannot be alleged simply by stating 'defendant had a duty under the law'; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, citations omitted.) "In view of the fact that tort causes of action against public entities are now based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded." (*Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 809, citations omitted.) Where the plaintiff fails to allege facts sufficient to show the existence of statutory liability, the court should sustain a demurrer to the complaint for failure to state a claim. (*Id.* at p. 811.)

Here, plaintiff has attempted to allege fourteen separate causes of action against defendants City of Firebaugh, former Chief of Police Raygoza, and former Sergeant Ortiz based on an incident where she was allegedly unlawfully evicted from her home by her landlord with the help of Sergeant Ortiz. (FAC, ¶¶ 4-6.) She claims that defendants violated her property and personal rights by illegally assisting with the eviction without proper legal authority. (*Ibid.*) She alleges that Sergeant Ortiz used threats and coercion against her when he forced her to leave the property. (*Ibid.*) Plaintiff also alleges that Chief Raygoza conducted a biased investigation into the incident after she made a complaint to him about Sergeant Ortiz's conduct, and Chief Raygoza wrongly concluded that Ortiz did nothing wrong. (*Id.* at ¶¶ 7-8.)

First Cause of Action: Plaintiff's first cause of action for "Willful Intent" cites to Civil Code sections 3294, which authorizes punitive damages, and 52.1, and 52.1(h), the Bane Act, as well as Penal Code sections 7(1) and 21(a). (FAC, ¶ 111.) There is no recognized cause of action for "Willful Intent." However, it appears that plaintiff is attempting to state a claim under the Bane Act.

Under Civil Code section 52.1, "If a person or persons, whether or not acting under color of law, interferes by threat, intimidation, or coercion, or attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state, the Attorney General, or any district attorney or city attorney may bring a civil action for injunctive and other appropriate equitable relief in the name of the people of the State of California, in order to protect the peaceable exercise or enjoyment of the right or rights secured." (Civ. Code, § 52.1, subd. (b).)

In addition, "[a]ny individual whose exercise or enjoyment of rights secured by the Constitution or laws of the United States, or of rights secured by the Constitution or laws of this state, has been interfered with, or attempted to be interfered with, as described in subdivision (b), may institute and prosecute in their own name and on their own behalf a civil action for damages, including, but not limited to, damages under Section 52, injunctive relief, and other appropriate equitable relief to protect the peaceable exercise or enjoyment of the right or rights secured, including appropriate equitable and

declaratory relief to eliminate a pattern or practice of conduct as described in subdivision (b).” (Civ. Code, § 52.1, subd. (c).)

Also, under section 52.1, subdivision (n), “The state immunity provisions provided in Sections 821.6, 844.6, and 845.6 of the Government Code shall not apply to any cause of action brought against any peace officer or custodial officer, as those terms are defined in Chapter 4.5 (commencing with Section 830) of Title 3 of Part 2 of the Penal Code, or directly against a public entity that employs a peace officer or custodial officer, under this section.” (Civ. Code, § 52.1, subd. (n).)

Thus, plaintiff has alleged a sufficient statutory basis for her first cause of action that would permit her to sue the City and its officers for violating her civil rights, as the Bane Act contains provisions that expressly provide an exception to sovereign immunity. She has also alleged enough facts to support her Bane Act claim, as she alleges that defendant Sergeant Ortiz, while acting under color of law, threatened and coerced her into leaving her home and allowed her landlord and others to enter her home and tamper with her personal property. (FAC, ¶¶ 111-113.) She also alleges that defendants failed to investigate the conduct of Sergeant Ortiz in an unbiased manner and failed to take corrective or disciplinary action against him. (*Id.* at ¶ 112.) As a result, the court intends to find that plaintiff has adequately alleged a claim under the Bane Act, and it will overrule the demurrer to the first cause of action.

Second Cause of Action: On the other hand, the court will sustain the demurrer to the second cause of action for unjust enrichment. “An individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another's expense. Benefit means any type of advantage.” (*First Nationwide Savings v. Perry* (1992) 11 Cal.App.4th 1657, 1662, citations omitted.)

Here, plaintiff fails to allege any statutory exception to sovereign immunity or facts showing that the statute applies to her claim. While she briefly cites to the Bane Act and the United States Civil Rights Act, 42 U.S.C. §§ 1981-1988 (FAC, ¶ 119), to the extent that she is alleging a violation of her civil rights, the first cause of action already alleges a claim for civil rights violations, so the second cause of action is redundant of the first cause of action.

To the extent plaintiff is trying to allege a claim for unjust enrichment, she has not alleged any facts showing that defendants were unjustly enriched due to their allegedly wrongful conduct during the eviction and subsequent investigation of the incident. At most, she has alleged that she was harmed by defendant's violation of her rights, not that defendants received an unjust benefit at her expense. Nor has she explained in her opposition how she could allege any other facts that would support an unjust enrichment claim. In fact, the complaint's allegations seem to show that defendants did not receive any money, property, or other benefit at plaintiff's expense that would support an unjust enrichment claim. Therefore, the court intends to sustain the demurrer to the second cause of action, without leave to amend.

Third Cause of Action: The third cause of action for “Punitive and Non-Economic Damages” also fails to state a claim. There is no recognized cause of action for punitive and non-economic damages. Punitive and non-economic damages are remedies, not causes of action. “Punitive damages are merely incident to a cause of action, and can

never constitute the basis thereof.” (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193, citations omitted.)

In addition, even if “punitive or non-economic damages” were a valid cause of action, plaintiff has not alleged any statutory basis that would allow her to seek punitive damages against the public entity defendants, or any facts to support her cause of action. In fact, plaintiff cannot recover punitive damages against the City, as public entities are immune from claims for punitive damages. (Gov. Code, § 818.) Therefore, the court intends to sustain the demurrer to the third cause of action, without leave to amend.

Fourth Cause of Action: The fourth cause of action also fails to state facts sufficient to constitute a cause of action. Plaintiff attempts to state a claim for private nuisance under Civil Code section 3479, 3481, and 3501, which generally define the concept of “nuisance” and “private nuisance”, and allow for civil actions for a private nuisance. However, none of the cited statutes provides for public entity liability. Thus, plaintiff has not shown that there is any statutory authority providing that she can sue defendants, or that the statute applies here.

In addition, she has not alleged any facts showing that defendants created a private nuisance. The facts alleged in the complaint only show that defendants allegedly helped evict her in an improper manner, and then failed to adequately investigate the incident. Such facts do not show the existence of a nuisance, or that defendants created the nuisance. Therefore, the court intends to sustain the demurrer to the fourth cause of action for failure to state a cause of action. Furthermore, plaintiff has not explained how she could amend the complaint to cure the defect, so the court will deny leave to amend the fourth cause of action.

Fifth Cause of Action: The court also intends to sustain the demurrer to the fifth cause of action for “Omission of Material Fact.” Again, there is no recognized cause of action for “Omission of Material Fact.” Nor has plaintiff alleged any statute that would allow her to sue a public entity or employee for making alleged omissions in a police report. To the extent that plaintiff seems to be alleging that defendant Ortiz violated her civil rights by failing to completely and accurately report the facts regarding the eviction, she has already alleged a civil rights claim in the first cause of action. The fifth cause of action is, at best, redundant of her earlier civil rights claim. Nor has plaintiff explained how she could allege any other facts to cure the defect in her cause of action. Therefore, the court will sustain the demurrer to the fifth cause of action, without leave to amend.

Sixth and Seventh Causes of Action: Next, the court intends to sustain the demurrer to the sixth cause of action for negligent infliction of emotional distress and the seventh cause of action for negligence. Negligence and negligent infliction of emotional distress are essentially the same tort, as negligent infliction of emotional distress is just negligence that causes emotional distress. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984.) Thus, plaintiff's sixth cause of action for negligent infliction of emotional distress is redundant of her seventh cause of action for negligence.

Furthermore, plaintiff has not alleged any statute that would allow her to sue the public entity and employee defendants for common law negligence or negligent infliction of emotional distress. Thus, plaintiff has not shown that there is an exception to the usual rule of sovereign immunity here, and she has not stated a claim for negligence

or negligent infliction of emotional distress. As a result, the court intends to sustain the demurrer to the sixth and seventh causes of action for failure to state a claim.

However, the court will grant leave to amend, as it is possible that plaintiff might be able to allege a statutory basis for her negligence claim against the defendants. For example, plaintiff has cited to Government Code section 815.6 in her opposition, which provides liability for public employees who fail to discharge a mandatory duty imposed by law. (Gov. Code, § 815.6.) The court will grant leave to amend to allow plaintiff to allege a statute that imposes liability on defendants here, as well as particular facts showing that the statute applies to the case.

Eighth Cause of Action: The court intends to sustain the demurrer to the eighth cause of action for intentional misrepresentation. "The elements of fraud that will give rise to a tort action for deceit are: '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974, citation and internal quote marks omitted.)

Plaintiff alleges that defendants misrepresented the facts of the incident in their reports, statements, and records, as well as making false statements in the investigation of the incident. (FAC, ¶¶ 146, 147.) Again, however, plaintiff has not alleged any statute that would allow her to sue defendants, who are subject to immunity as public entities and employees. Also, plaintiff has not alleged facts showing that she relied on defendant's false statements, or any facts showing how she was damaged by her reliance. Therefore, she has not stated a claim for intentional misrepresentation. Nor does it appear that she could allege any facts to cure the defect in her claim.

While plaintiff alleges that she relied on the reports and investigation findings, it is clear from the other allegations of her complaint that she never believed defendants' version of the events and that she strongly disagreed with them. She also alleges no facts showing that she was harmed by her reliance on any statements in the reports or findings. Thus, she did not justifiably rely on defendants' allegedly false statements, nor was she injured because of any such reliance. As a result, the court intends to sustain the demurrer to the eighth cause of action for failure to state facts sufficient to constitute a cause of action, without leave to amend.

Ninth Cause of Action: Next, the court intends to sustain the demurrer to the ninth cause of action for harassment. Plaintiff alleges that "Defendant" harassed her during the eviction process in violation of her civil rights under the California Constitution and Civil Code sections 52.1. (FAC, ¶¶ 151-153.)

First, there is no recognized civil cause of action for "harassment." However, plaintiff does cite to Civil Code sections 51.1 and 52.1(h), the Bane Act, which does provide a valid statutory basis for suing the public entity and public employee defendants. Still, to the extent that plaintiff is seeking to bring a claim under the Bane Act, she has already alleged the same facts and harm in her first cause of action, which also seeks to bring a claim for civil rights violations under the Bane Act. Therefore, the ninth cause of action is redundant of the first cause of action, and the court intends to sustain the demurrer to it without leave to amend.

Tenth Cause of Action: The court will also sustain the demurrer to the tenth cause of action for "Falsifying Evidence." Plaintiff alleges that defendant Ortiz made false statements in his police report and Chief Raygoza failed to correct the inaccurate report. (FAC, ¶ 157.)

Again, there is no recognized cause of action for falsifying evidence in California law. Nor has plaintiff alleged any statute that would provide an exception to immunity and allow her to sue defendants under the circumstances. She does cite to the Bane Act and 42 U.S.C. sections 1981-1988, but she does not allege any facts showing how she would be allowed to sue defendants for allegedly falsifying evidence under the Bane Act or the federal Civil Rights Act. In any event, her claim is redundant of the first cause of action to the extent she is trying to allege civil rights violations. Therefore, the court intends to sustain the demurrer to the tenth cause of action, without leave to amend.

Eleventh Cause of Action: The court will also sustain the demurrer to the eleventh cause of action for "Concealment of Evidence." Plaintiff alleges that defendants concealed material evidence regarding the incident because Ortiz concealed facts and failed to correct known deficiencies in his police report. (FAC, ¶ 162.) She also alleges that Chief Raygoza failed to ensure that the report was complete and accurate, and failed to disclose internal findings that would have revealed misconduct by subordinates. (*Id.* at ¶ 162.)

Once again, there is no recognized civil cause of action in California for concealment of evidence. Nor has plaintiff alleged any statute that would allow her to sue defendants, who are immune from non-statutory claims. She also does not allege any facts showing that such a statute would apply here. As a result, the court intends to sustain the demurrer to the eleventh cause of action, without leave to amend.

Twelfth Cause of Action: The court will also sustain the demurrer to the twelfth cause of action for "Coercion." Again, there is no recognized cause of action for "Coercion" in California. While plaintiff cites to the Bane Act, she has already alleged a Bane Act claim in the first cause of action. The twelfth cause of action is therefore redundant and fails to state a valid cause of action. The court intends to sustain the demurrer to the twelfth cause of action without leave to amend, as it does not appear that plaintiff can amend the complaint to state a valid cause of action for coercion.

Thirteenth Cause of Action: Likewise, the thirteenth cause of action for "Biased Conduct" also fails to state a claim and therefore the court will sustain the demurrer to it. There is no recognized cause of action for "Coercion" in California. Plaintiff alleges the same facts that support her other causes of action. (FAC, ¶ 172.) In effect, she is again alleging that defendants violated her civil rights in violation of the Bane Act and the California Constitution. However, she has already alleged a civil rights claim in the first cause of action, so the thirteenth cause of action for "Biased Conduct" is redundant and fails to state a valid cause of action. Nor does it appear that plaintiff can amend the complaint to state a valid cause of action. Therefore, the court intends to sustain the demurrer to the thirteenth cause of action, without leave to amend.

Fourteenth Cause of Action: Finally, the court intends to sustain the demurrer to the fourteenth cause of action for "Aiding and Abetting." Again, there is no recognized California cause of action for aiding and abetting. Plaintiff simply repeats the same facts and conclusions that she recites in the other parts of her complaint. At most, her

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK **on** 05/18/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Angela Hughey vs. Promesa Apartments**
Superior Court Case No. 25CECG05699

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Demurrer

Tentative Ruling:

To sustain defendant's demurrer with leave to amend. Plaintiff is granted leave of 30 days to file a first amended complaint, which shall run from service by the clerk of the minute order. New language must be set in **boldface** type.

Explanation:

Defendant Fresno 1101 Parkway, LP ("Fresno 1101" or "defendant") hereby demurs to plaintiff, Angela Hughey's ("Hughey" or "plaintiff") complaint on the grounds that it is uncertain and fails to state facts sufficient to constitute a cause of action because 1) the complaint contains no causes of action and 2) it contains bare bones factual allegations that are insufficient to constitute a cause of action. The only factual allegations are "do [sic] to complete harassment from manager at Promesa," "discriminated, threats due to harassment" and "roach infestation."

The function of a demurrer is to test the sufficiency of a pleading by raising questions of law. (*Plumlee v. Poag* (1984) 150 Cal.App.3d 541, 545.) As relates to a complaint, the test is whether plaintiff has succeeded in stating a cause of action; the court does not concern itself with the issue of plaintiff's possible difficulty or inability in proving the allegations of the complaint. (*Highlanders, Inc. v. Olsan* (1978) 77 Cal.App.3d 690, 697.) In assessing the sufficiency of the complaint against demurrer, we treat the demurrer as admitting all material facts properly pleaded, bearing in mind the appellate courts' well established policy of liberality in reviewing a demurrer sustained without leave to amend, liberally construing the allegations with a view to attaining substantial justice among the parties. (*Glaire v. LaLanne-Paris Health Spa, Inc.* (1974) 12 Cal.3d 915, 918.)

A complaint must state facts sufficient to constitute a cause of action per California Code of Civil Procedure section 430.10. A prerequisite to this is that the complaint in fact contain at least one legally recognized cause of action, which is the specific legal basis and set of facts showing why the defendant owes the plaintiff relief, supported by facts for each element of the claim. Without a valid cause of action, the complaint lacks the legal grounds for the lawsuit and is subject to a demurrer.

Here, the universe of factual allegations in Hughey's complaint are "do [sic] to complete harassment from manager at Promesa," "discriminated, threats due to harassment" and "roach infestation." Said allegations are insufficient to constitute a cause of action and to apprise Fresno 1101 of the particular allegations and/or claims

Even though the allegations are made on a Judicial Council form complaint, they are subject to challenge if the form is not filled out completely and correctly, i.e., they are supposed to have the forms for causes of action attached. The complaint fails to plead facts pertaining to any element of any cause of action, e.g. that defendant owed a legal duty and breached said duty. Accordingly, the demurrer is sustained for those reasons.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/19/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Patterson v. Soler et al.***
Superior Court Case No. 25CECG02748

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Motion for Good Faith Settlement Determination

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/19/26
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Hernandez v. Vizzolini et al.***
Superior Court Case No. 24CECG02586

Hearing Date: May 20, 2026 (Dept. 502)

Motion: By Defendant Victor Alvarez to Set Aside Default

Tentative Ruling:

To deny. (Code Civ. Proc., § 473, subd. (b).)

Explanation:

Defendant Victor Daniel Alvarez dba All About Hot Tubs ("Defendant") moves to set aside default, entered against it on December 11, 2024, pursuant to Code of Civil Procedure section 473, subdivision (b). Defendant argues that he is entitled to relief under the discretionary provision of the statute because his failure to file a response to the complaint was the result of mistake, inadvertence, surprise, or excusable neglect.

The court is empowered to relieve a party or the party's legal representative "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.

The trial court has broad discretion to vacate the judgment and/or the clerk's entry of default that preceded it. However, that discretion can be exercised only if the moving party establishes a proper ground for relief, by the proper procedure, and within the statutory time limits. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) "Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) Once six months have elapsed after entry of default, the court no longer has jurisdiction over it. (*Thompson v. Vallembois* (1963) 216 Cal.App.2d 21, 24.) Even where a party timely files a motion to set aside a default judgement, if more than six months have elapsed since the entry of default, relief from default would not be available. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

Here, default was entered by the clerk on December 11, 2024, against Defendant. Defendant filed the instant motion on March 12, 2026. Defendant served and filed the motion to set aside default approximately one year and three months after default was entered against them. Consequentially, the motion is untimely under Code of Civil Procedure section 473, subdivision (b), and Defendant cannot be granted relief from default. The motion is denied.

